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Filed with the Court

AUG 28 2018

Paula T. Dow, P.J.Ch.

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BURLINGTON COUNTY
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Johnny S. Bobbitt, Jr.,	:	SUPERIOR COURT OF NEW JERSEY
	:	BURLINGTON COUNTY
Plaintiff,	:	
	:	GENERAL EQUITY DIVISION
v.	:	
	:	DOCKET NO.: <u>C-72-18</u>
Katelyn McClure and Mark D'Amico,	:	
	:	Civil Action
Defendants.	:	VERIFIED COMPLAINT

Plaintiff, Johnny Bobbitt, Jr., by and through his counsel, Cozen O'Connor, and by way of a Verified Complaint against Defendants, Katelyn McClure and Mark D'Amico (collectively, "Defendants"), states as follows:

1. Plaintiff, Johnny S. Bobbitt, Jr., is a homeless Philadelphia resident who resides on the streets of Philadelphia.
2. On information and belief, Defendants, Katelyn McClure ("McClure") and Mark D'Amico ("D'Amico"), are New Jersey residents with an address of 2033 Cedar Lane Extension, Bordentown, New Jersey 08505.
3. In late Autumn, 2017, Plaintiff Johnny S. Bobbitt, a homeless man residing on the streets of Philadelphia, came to the assistance of Defendant, McClure.
4. Plaintiff, without any intent of deriving financial benefit from Defendant McClure, assisted Defendant McClure.

5. Thereafter, Defendant McClure and her boyfriend, Defendant D'Amico, established a Go Fund Me account for the benefit of Plaintiff, Johnny S. Bobbitt, Jr., and after nationwide television exposure, more than 14,000 generous donors contributed in excess of \$400,000 to benefit Plaintiff, Johnny S. Bobbitt, Jr.

6. After initially providing Plaintiff with some of the monies contributed, Defendants have declined to provide Plaintiff access to the money that was raised for his benefit nor have they created a formal trust for his benefit as Defendants had promised to do.

7. In accepting money from over 14,000 generous donors, Defendants became constructive trustees of the monies donated for Plaintiff's benefit and, as such, undertook certain fiduciary responsibilities for the money that was raised.

8. Plaintiff believes and therefore avers that Defendants have expended more than half of the monies raised, and they continue to deprive Plaintiff access to the funds that were raised for him. In fact, in an interview with The Philadelphia Inquirer, Defendant McClure told a reporter that he would rather burn the money than give it to the Plaintiff. For further detail, Plaintiff attaches as Exhibit "A" an article that appeared on Philly.com on August 23, 2018.

9. In an interview with Megyn Kelly on NBC on Monday August 27, 2018, Defendant D'Amico indicated that the remaining balance may be as low as \$150,000.

10. In the same interview with Megyn Kelly, Defendant D'Amico admitted that the Go Fund Me monies raised for Mr. Bobbitt were comingled with his personal funds where some of the monies apparently remain.

11. Plaintiff believes and therefore avers that Defendants have considered the foregoing Go Fund Me account as their personal piggy bank to fund a lifestyle that they could not otherwise afford.

12. Plaintiff's counsel asked Defendants for an accounting of the Go Fund Me monies raised for Mr. Bobbitt and Defendants have so far declined to provide an accounting.

COUNT I
Conversion

13. Plaintiff repeats and incorporates by reference each and every allegation contained in the preceding paragraphs as if fully set forth herein.

14. Defendants are in possession of funds donated by more than 14,000 individuals, families and businesses for the benefit of the Plaintiff.

15. Defendants' refusal to release the funds to Plaintiff constitutes wrongful dominion, possession and control over the funds intentionally undertaken to deprive Plaintiff of funds that are rightfully his.

16. Plaintiff will suffer irreparable harm if his funds are not released and/or deposited with the Court.

17. As a direct and proximate result of Defendants' conversion, Plaintiff has been harmed and caused to suffer damages.

18. Defendants' conduct was malicious and outrageous and warrants the imposition of punitive damages.

WHEREFORE, Plaintiff demands that judgment be entered in his favor and against Defendants for the following relief:

- (a) An Order temporarily, preliminarily and permanently enjoining and restraining Defendants from:
 - (1) Dissipating any of the monies donated to the Go Fund Me account opened for the benefit of Plaintiff, Johnny S. Bobbitt, Jr.; and
 - (2) Using the foregoing funds for any purposes other than to directly benefit Plaintiff, Johnny S. Bobbitt, Jr.;

- (b) Compensatory damages and interest;
- (c) Counsel fees and costs of suit;
- (d) An accounting of all funds donated to the Go Fund Me account created for the benefit of the Plaintiff;
- (e) The appointment of a receiver for the fund and for the funds to be deposited with the Court;
- (f) The appointment of a guardian ad litem for Plaintiff, Johnny S. Bobbitt, Jr.; and
- (g) Such other and further relief as this Court deems equitable and just.

COUNT II
Fraud

19. Plaintiff repeats and incorporates by reference each and every allegation contained in the preceding paragraphs as if fully set forth herein.

20. Upon information and belief, Defendants made false misrepresentations to obtain Plaintiff's funds, most of which they kept for themselves.

21. Upon information and belief, Defendants made false representations of facts to Plaintiff, including, but not limited to, failing to disclose their intent to keep the majority of the funds.

22. Upon information and belief, Defendants knew the representations of facts they made to Plaintiff were false.

23. Upon information and belief, Defendants' representations were intended to deceive Plaintiff.

24. Plaintiff to his great detriment believed and justifiably relied on Defendants' misrepresentations.

25. Upon information and belief, rather than release the funds to Plaintiff, Defendants instead perpetrated a fraud by keeping the majority of Plaintiff's funds.

26. Plaintiff will suffer irreparable harm if his funds are not released.

27. As a direct and proximate result of Defendants' conduct, Plaintiff has been harmed and caused to suffer damages.

WHEREFORE, Plaintiff demands that judgment be entered in his favor and against Defendants for the following relief:

- (a) An Order temporarily, preliminarily and permanently enjoining and restraining Defendants from:
 - (1) Dissipating any of the monies donated to the Go Fund Me account opened for the benefit of Plaintiff, Johnny S. Bobbitt, Jr.; and
 - (2) Using the foregoing funds for any purposes other than to directly benefit Plaintiff, Johnny S. Bobbitt, Jr.;
- (b) Compensatory damages and interest;
- (c) Counsel fees and costs of suit;
- (d) An accounting of all funds donated to the Go Fund Me account created for the benefit of the Plaintiff;
- (e) The appointment of a receiver for the fund and for the funds to be deposited with the Court;
- (f) The appointment of a guardian ad litem for Plaintiff, Johnny S. Bobbitt, Jr.; and
- (g) Such other and further relief as this Court deems equitable and just.

COUNT III

Tortious Interference

28. Plaintiff repeats and incorporates by reference each and every allegation contained in the preceding paragraphs as if fully set forth herein.

29. Plaintiff had a reasonable expectation of economic benefit through the funds contributed by more than 14,000 individuals, families and businesses.

30. At all times material hereto, Defendants had notice of Plaintiff's reasonable expectation of the economic benefit intended by the donors.

31. Defendants, intentionally and without justification or excuse, interfered with Plaintiff's reasonable expectation of further economic benefit by intentionally engaging in malicious acts designed to harm Plaintiff.

32. As a consequence of the intentional and malicious interference with prospective economic advantage to Defendants, Plaintiff has suffered and/or will suffer immediate and irreparable harm and damages.

WHEREFORE, Plaintiff demands that judgment be entered in his favor and against Defendant for the following relief:

- (a) An Order temporarily, preliminarily and permanently enjoining and restraining Defendants from:
 - (1) Dissipating any of the monies donated to the Go Fund Me account opened for the benefit of Plaintiff, Johnny S. Bobbitt, Jr.; and
 - (2) Using the foregoing funds for any purposes other than to directly benefit Plaintiff, Johnny S. Bobbitt, Jr.;
- (b) Compensatory damages and interest;
- (c) Counsel fees and costs of suit;
- (d) An accounting of all funds donated to the Go Fund Me account created for the benefit of the Plaintiff;
- (e) The appointment of a receiver for the fund and for the funds to be deposited with the Court;
- (f) The appointment of a guardian ad litem for Plaintiff, Johnny S. Bobbitt, Jr.; and
- (g) Such other and further relief as this Court deems equitable and just.

COUNT IV
Conspiracy

33. Plaintiff repeats and incorporates by reference each and every allegation contained in the preceding paragraphs as if fully set forth herein.

34. Through the aforementioned conduct, Defendants entered into an agreement between themselves with a common purpose to defraud Plaintiff, wrongfully convert his funds, and tortiously interfered with his economic benefit for their own purposes.

35. By reason of the foregoing, the Defendants engaged in overt acts in furtherance of their conspiracy to defraud Plaintiff, wrongfully convert his funds and tortiously interfere with his economic gain for their own purposes.

36. By reason of the foregoing conduct, Plaintiff was harmed, and Defendants are liable for civil conspiracy.

WHEREFORE, Plaintiff demands that judgment be entered in his favor and against Defendants for the following relief:

- (a) An Order temporarily, preliminarily and permanently enjoining and restraining Defendants from:
 - (1) Dissipating any of the monies donated to the Go Fund Me account opened for the benefit of Plaintiff, Johnny S. Bobbitt, Jr.; and
 - (2) Using the foregoing funds for any purposes other than to directly benefit Plaintiff, Johnny S. Bobbitt, Jr.;
- (b) Compensatory damages and interest;
- (c) Counsel fees and costs of suit;
- (d) An accounting of all funds donated to the Go Fund Me account created for the benefit of the Plaintiff;
- (e) The appointment of a receiver for the fund and for the funds to be deposited with the Court;
- (f) The appointment of a guardian ad litem for Plaintiff, Johnny S. Bobbitt, Jr.; and
- (g) Such other and further relief as this Court deems equitable and just.

CERTIFICATE PURSUANT TO R. 4:5-1(b)(2)

I hereby certify that the matter in controversy is not the subject of any other action pending in any court or of a pending arbitration proceeding, (b) there is no other action or

arbitration proceeding contemplated, (c) there are no non-parties who should be joined in this action pursuant to R. 4:28 or who is subject to joinder pursuant to R. 4:29-1(b) because of potential liability to any party on the basis of the same transactional facts, (d) the foregoing statements made by me are true and correct to the best of my knowledge, information and belief, and (e) if any of the foregoing statement is willfully false, I am subject to punishment.

DESIGNATION OF TRIAL COUNSEL

Pursuant to R. 4:25-4, Martin P. Duffey, Esquire is hereby designated as trial counsel for the Plaintiff in this matter.

COZEN O'CONNOR

By: 
Martin P. Duffey, Esquire

Dated: August 28, 2018

Of Counsel:
Cozen O'Connor
Christopher C. Fallon, Jr., Esquire
Jacqueline Promislo, Esquire
One Liberty Place
1650 Market Street Suite 2800
Philadelphia, PA 19103
(Pro Hac Vice pending)

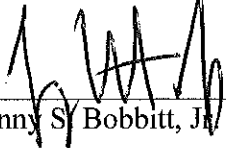
VERIFICATION OF PLAINTIFF

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Johnny S. Bobbitt, of full age, hereby verifies as follows:

1. I have reviewed the foregoing Verified Complaint, and every factual allegation contained therein is true to the best of my knowledge and belief.
2. I certify that the foregoing statements made are true. I am aware that if any of the statements made by me are willfully false, I am subject to punishment.



Johnny S. Bobbitt, Jr.

Dated:

Exhibit A

NEWS SPORTS BUSINESS OPINION POLITICS ENTERTAINMENT LIFE FOOD Q ≡

NEWS

Homeless again, Johnny Bobbitt can't get his GoFundMe money

by Barbara Boyer, Posted: August 23, 2018



DAVID SWANSON



Johnny Bobbitt, famously rescued from the streets of Philadelphia last October after word of his kindness to a stranger went viral and led to a \$400,000 GoFundMe campaign, is once again homeless, drug-addicted — and panhandling for money.

The couple who started the fund-raiser say that in helping Bobbitt, they've spent or given him more than half of the money donated by thousands of people around the world and they are withholding the roughly \$200,000 balance. Bobbitt says he fears that the couple, Kate McClure and her boyfriend, Mark D'Amico, squandered much of the money. He worries there may be little, or nothing, left.

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GOFUNDME

Kate McClure rescued Johnny Bobbitt from the streets after she ran out of gas and he used his last \$20 to help her.

The once-warm relationship between Bobbitt and the couple has dissolved into acrimony and discord, and the dispute may be headed to court. GoFundMe officials and lawyers for Bobbitt are trying to determine whether the money was mismanaged.

Bobbitt, 35, a North Carolina native, made international news when he used his last \$20 to buy gas for McClure, 28, of Burlington County, after her car stalled on the I-95 ramp in Kensington, where he had been panhandling.

In return, McClure and D'Amico, 39, gave Bobbitt money, food, and clothing. Their GoFundMe campaign to find Bobbitt a home inspired 14,347 donors to give generously as the three appeared on *Good Morning America*, the BBC, and in newspapers across the country.

"He will never have to worry about a roof over his head again!!" the couple posted on GoFundMe as they thanked "everyone who had a part of this amazing ride."

The couple promised donors they would set up two trusts for Bobbitt's benefit and hire a lawyer and a financial adviser for him to help manage the money and invest for his future.

"The first thing on the list is a NEW Home which Johnny will own!!" the GoFundMe posting said.

Not long after, tensions were simmering. The promise of a home gave way to a camper that Bobbitt lived in until June on land McClure's family owns in rural Florence Township, Burlington County, near the small house the couple share. He never got his "dream" pickup, a 1999 Ford Ranger, and the used SUV he

was given instead broke down. The couple said they put the two vehicles in McClure's name so Bobbitt couldn't sell them, but both vehicles have since been sold.

Through it all, Bobbitt admits, the pull of drugs was strong, dooming two stints in rehab and sending him back to the streets, where he now spends his days scrambling for money and drugs.



DAVID SWANSON / STAFF PHOTOGRAPHER

Johnny Bobbitt returned to Philadelphia, homeless and broke despite the generosity of donors.

Bobbitt wonders how McClure, a receptionist for the New Jersey Department of Transportation, paid for the new BMW she drives and for vacations to California, Florida, and Las Vegas, as well as a helicopter ride over the Grand Canyon. He also questions how much D'Amico, a carpenter, spent gambling.

In an interview last week, the couple said they used their own money to buy the BMW and to pay for vacations. D'Amico said he gave McClure the car as a gift. The California trip, he said, was paid for by *The Ellen DeGeneres Show*, which invited them on to talk about their GoFundMe campaign for Bobbitt. D'Amico said he spent \$500 of the GoFundMe money to gamble because he did not have his SugarHouse Casino card one night, but he said he quickly repaid it with his winnings.

As for Bobbitt, the couple said he once burned through \$25,000 they gave him in less than two weeks. They said he stole from them and pawned some of their possessions for cash to feed his drug habit, allegations he denies.

With no formal accounting of the money and no financial statements, it is unclear how much is left. What is clear is that Bobbitt has little to show for it.

He insists that the couple didn't shell out anywhere near the \$200,000 they say they spent on his care. He said McClure and D'Amico controlled most of the spending and limited how much they gave him to live on. He said he had no direct access to the money donors contributed.



Bobbitt said he never met the lawyer the couple said they hired for him. He said he met briefly with a financial adviser they recommended, but never signed or saw paperwork for any trusts.

There are no trusts, D'Amico said in an interview last week. He said the remaining \$200,000 is in a savings account that he will start dispensing when Bobbitt gets a job and is drug-free. On Wednesday, D'Amico said he had reconsidered that decision and had given Bobbitt \$400 in cash and some gift cards. On Thursday morning he said he hoped Bobbitt would not spend the money on drugs.

The couple declined to produce financial statements or provide an accounting of the spending from the GoFundMe campaign. They said they spent much of the money on the hotel Bobbitt stayed in until they bought him the camper and an SUV, along with a television, laptop, and two cellphones. They also paid for food and clothing, they said. GoFundMe kept \$30,000 as a standard fee.

McClure, through tears, said she and D'Amico did all they could to help Bobbitt, and she still believes he can turn his life around. But for now, she feels frustrated and betrayed. "I don't want to lose my job over this," she said.

D'Amico said he controls the money and did nothing wrong. "Write what you want," he said last week.

"Giving him all that money, it's never going to happen. I'll burn it in front of him," said D'Amico, who in recent months has had his own legal problems stemming from traffic offenses, a suspended driver's license, and an arrest for failing to appear in municipal court. Giving the money to someone addicted to drugs, he said, would be like "giving him a loaded gun."



DAVID SWANSON / FILE PHOTOGRAPH
Johnny Bobbitt with Kate McClure and Mark D'Amico last year

Bobbitt said he feels betrayed. He questions whether the couple can legally deny him access to the money donated to help him.

After he moved from the hotel room into the camper, Bobbitt said, he was worried because D'Amico seemed to spend more time gambling online or at casinos than working. If he brought up finances, Bobbitt said, the couple were dismissive. D'Amico, he said, would withdraw large sums of money, give some to him, and keep the rest.

"I think it might have been good intentions in the beginning, but with that amount of money, I think it became greed," Bobbitt said as he sat beneath the bridge at Callowhill and Second Streets, where he and his brother, Josh, 34 and also addicted to opiates, have been staying since June.

In the city, homeless advocates helped Bobbitt and his brother find a detox program and put Bobbitt in touch with the pro bono lawyers now investigating his options.

"I think he is just a genuine, sincere person who has been the victim of so many bad circumstances," said Jacqueline Promislo of Cozen O'Connor, who with her colleague Chris Fallon agreed to represent Bobbitt last week. "We want to make sure he has the opportunity to benefit from the incredible generosity of people."

Promislo sent McClure and D'Amico a letter on Thursday, asking them to meet and discuss the GoFundMe money. D'Amico has agreed to do that on Monday, she said.

The GoFundMe website says its policies are strictly enforced, and those who raise money are forbidden to deceive donors for their own personal gain. The nonprofit says it cooperates with law enforcement when there are allegations of fraud or instances in which money has been withheld from the beneficiary or used for something other than the stated purpose.

GoFundMe spokesman Bartlett Jackson said the nonprofit "is looking into the claims of misuse regarding this campaign. When there is a dispute, we work with all parties involved to ensure funds go to the right place. We will work to ensure that Johnny receives the help he deserves and that the donors' intentions are honored."

Donors gave generously as the story spread about Bobbitt's serendipitous meeting with McClure. Bobbitt, whose bright smile at times veils his troubles, did a brief stint in the military, got engaged, and had been studying to be a paramedic before he lost it all to drugs.

For a time, he said, he lived a tranquil and mostly sober life in Montana before coming to Philly in 2016. He came to buy a truck, but his life spiraled again.

"I have said that all along that I wanted to leave this godforsaken place and go back to North Carolina or Montana," Bobbitt said.

When his fortune changed with the GoFundMe campaign, he began to think he might finally be able to head west.

"I'm not going to lie and say I wasn't thrilled about the money," Bobbitt said last week. "Who wouldn't be?"

McClure and D'Amico said they took significant time off from work to help Bobbitt, and they tried having him manage his own money, only to watch him quickly spend thousands. Bobbitt acknowledged that they once gave him \$25,000, which he said he spent by sending money to relatives and sharing with friends. He also spent some of it on drugs. Typically, Bobbitt said, he uses \$15 a day to buy opiates or Suboxone, a prescription drug used to treat addiction.

In recent days, D'Amico told an evolving account of his stewardship of the money. Initially, he said he would not produce financial records because the money was put into an existing account at PNC bank that does not belong to Bobbitt. On Wednesday, he said he and McClure had opened up a separate account for Bobbitt. On Thursday morning he said he told a reporter the trusts had been set up because that's what Bobbitt wanted him to say.

D'Amico said they decided to sell the camper for \$10,000 at Bobbitt's suggestion, along with the SUV, because Bobbitt wanted to use the money from the sale to move out of New Jersey.

Bobbitt said D'Amico refused to give him the money and told him he had to leave the Burlington County property.

As he sat under the bridge at Callowhill and Second, Bobbitt said panhandling for food and drugs is better than trying to squeeze money from McClure and D'Amico. Bobbitt kept an eye on his younger brother as he stood nearby on the median with a sign that read, "Homeless Hungry Anything Helps Thank You! God Bless!"



Posted: August 23, 2018 - 12:10 PM

Barbara Boyer | @bbboyer | bboyer@phillynews.com

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